

Incorporated, Ex Amino Aeternum Express Trust, or Noble Invicta Aeternum Express Trust.

Conclusion

For the reasons analyzed above, For the reasons explained below, **Defendants Nancy Ngyuen Yee and Robert Frank Yee's Motion to Strike or Vacate Default is DENIED.**

6. 9:00 AM CASE NUMBER: MSC22-00300

CASE NAME: AZAMEY VS CARAPIA

***HEARING ON MOTION IN RE: JUDGMENT ON THE PLEADINGS AS TO CARAPIAS' CLAIMS FOR INTENTIONAL AND NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS**

FILED BY: AZAMEY, MARIAM

TENTATIVE RULING:

Before the Court is Plaintiff and Cross-Defendant Mariam Azamey and Plaintiff James Unger (collectively, "Cross-Defendants")'s motion for judgment on the pleadings ("MJOP"). The MJOP relates to Defendant and Cross-Complainant Maureen Carapia and Jorge Carapia (collectively, "Cross-Complainants")'s claims for intentional and negligent infliction of emotional distress.

For the following reasons, the MJOP is **granted**, with leave to amend.

Brief Factual Allegations and Procedural Background

This is a property dispute between neighbors regarding an easement. Plaintiffs' Property is the dominant tenement of a 20-foot-wide easement that lies 12.5 feet on the Carapia Property and 7.5 feet on the Parker Property. (FAC at ¶ 8.) They allege several encroachments on this easement since their purchase of the property including overgrown vegetation, inoperable vehicles, and a screened patio. (*Id.* at ¶ 10(a).) Plaintiffs also allege that Carapias have maintained a fence within the 12.5 foot portion of the easement on the Carapia Property. (*Id.* at ¶ 10(b).)

Defendant Parker filed a Cross-Complaint for (1) trespass, (2) negligence, (3) intentional infliction of emotional distress, (4) negligent infliction of emotional distress, and (5) civil conspiracy on April 12, 2022.

The Carapia Defendants filed a Cross-Complaint for (1) quiet title based on adverse possession, (2) trespass, (3) negligence, (4) intentional infliction of emotional distress, (5) negligent infliction of emotional distress, and (6) civil conspiracy on April 13, 2022.

Plaintiffs filed a verified first amended complaint for (1) quiet title, (2) declaratory relief, (3) easement by necessity, (4) nuisance, (5) negligence per se, (6) slander of title, and (7) injunctive relief on November 29, 2022.

Legal Standard

The standard for granting a motion for judgment on the pleadings is essentially the same as that applicable to a general demurrer. (*Burnett v. Chimney Sweep* (2004) 123 Cal.App.4th 1057, 1064.) As a consequence, it may be granted if, from the pleadings, together with matters that may be judicially noticed, it appears that a party is entitled to judgment as a matter of law. (Code Civ. Proc. § 438(d); *Saltarelli & Steponovich v. Douglas* (1995) 40 Cal.App.4th 1, 5; Weil & Brown, *et al.*, Cal. Prac. Guide: Civ. Pro. Before Trial (The Rutter Group 2025) § 7:292.) As such, a motion for judgment on the pleadings involves the same type of procedures that apply to a general demurrer. (*Richardson-Tunnell*

v. School Ins. Program for Employees (2007) 157 Cal.App.4th 1056, 1061; *Burnett, supra*, 123 Cal.App.4th at p. 1064.) In considering a motion for judgment on the pleadings, courts consider whether the factual allegations, assumed true, are sufficient to constitute a cause of action. (*Fire Ins. Exchange v. Sup. Ct.* (2004) 116 Cal.App.4th 446, 452-453.) Also, like a demurrer, a motion for judgment on the pleadings does not lie as to only part of a cause of action. (*Id.* at p. 452; Weil & Brown, *et al.*, Cal. Prac. Guide: Civ. Pro. Before Trial (The Rutter Group 2025) § 7:295.)

Analysis

Cross-Defendants argue that Cross-Complainants' emotional distress claims fail as a matter of law; the Court takes each cause of action in turn.

Negligent Infliction of Emotional Distress

Cross-Defendants argue that the parties do not have a special preexisting relationship which would give rise to a heightened duty of care required for negligent infliction of emotional distress. (MJOP at § III(A).)

As to Cross-Complainants' claim for NIED, the subject duty and breach are uncertain. A claim for NIED is not an independent tort, but simply the tort of negligence (*Burgess v. Superior Court* (1992) 2 Cal.4th 1064, 1072), the elements of which are "duty, breach of duty, causation, and damages." (*Ess v. Eskaton Properties, Inc.* (2002) 97 Cal.App.4th 120, 126.)

The Cross-Complaint does not identify a duty or breach under this cause of action; instead, they incorporate by reference all the preceding paragraphs of the pleading. To the extent the claim may be based on Cross-Defendants' alleged conduct under the nuisance/trespass causes of action, a claim for NIED does not lie where, as here, the alleged injury is to property, and there are no facts alleged that demonstrate the existence of a special relationship of trust and confidence between the parties. (See *Sher Leiderman* (1986) 181 Cal.App.3d 867, 883-884 (*Sher*); see also *Potter v. Firestone Tire & Rubber Co.* (1993) 6 Cal.4th 965, 985 ["unless the defendant has assumed a duty to plaintiff in which the emotional condition of the plaintiff is an object, recovery is available only if the emotional distress arises out of the defendant's breach of some other legal duty and the emotional distress is proximately caused by that breach of duty. Even then, with rare exceptions, a breach of the duty must threaten physical injury, not simply damage to property or financial interests."].) While the Cross-Complaint reflects that the parties are neighbors (see XC at ¶¶ 1,2), the mere ownership of adjoining lots does not in fact give rise to a special relationship of trust or confidence requiring a heightened duty of care. (*Sher*, at p. 884.) Accordingly, Cross-Complainants fail to state a claim for negligent infliction of emotional distress.

The MJOP on the cause of action for negligent infliction of emotional distress is **granted**.

Intentional Infliction of Emotional Distress

Cross-Defendants argue that the allegations of the Cross-Complaint are insufficient to state a cause of action for intentional infliction of emotional distress.

" "[T]o state a cause of action for intentional infliction of emotional distress a plaintiff must show: (1) outrageous conduct by the defendant; (2) the defendant's intention of causing or reckless disregard of the probability of causing emotional distress; (3) the plaintiff's suffering severe or extreme emotional distress; and (4) actual and proximate causation of the emotional distress by the defendant's outrageous conduct." ' ' ' (*Vasquez v. Franklin Management Real Estate Fund, Inc.* (2013) 222 Cal.App.4th 819, 832.) " 'Conduct, to be " 'outrageous' " must be so extreme as to exceed all bounds of that usually tolerated in a civilized society.' " (*Huntingdon Life Sciences, Inc. v. Stop*

Huntingdon Animal Cruelty USA, Inc. (2005) 129 Cal.App.4th 1228, 1259.)

The allegations of the Cross-Complaint are sparse. In addition to alleging generally that Cross-Defendants “[made] threats to remove real and personal property of the Cross-Complainants from the Subject Property,” the Cross-Complainants allege that “[o]n November 12, 2021, Cross-Defendants, and each of them, wrongfully entered onto the Subject Property and started to destroy the real and personal property of Cross-Complainants to the point that police had to be called to stop Cross-Defendants and their agents from the continued destruction of Cross-Complainants['] private property.” (XC at ¶ 20.) These allegations are inadequate to state a claim for intentional infliction of emotional distress.

The MJOP on the cause of action for intentional infliction of emotional distress is **granted with leave to amend. Amended pleadings must be filed and served within 30 days of service of notice of entry of this order.**

7. 9:00 AM CASE NUMBER: MSC22-00300

CASE NAME: AZAMEY VS CARAPIA

***HEARING ON MOTION IN RE: JUDGMENT ON THE PLEADINGS AS TO CARAPIAS' CROSS-COMPLAINT**

FILED BY: AZAMEY, MARIAM

TENTATIVE RULING:

Before the Court is Plaintiff and Cross-Defendant Mariam Azamey and Plaintiff James Unger (collectively, “Cross-Defendants”)’s motion for judgment on the pleadings (“MJOP”). The MJOP relates to Defendant and Cross-Complainant Maureen Carapia and Jorge Carapia (collectively, “Cross-Complainants”)’s entire Cross-Complaint.

Cross-Defendants move on the grounds that Cross-Complainants failed to join an indispensable party (Defendant and Cross-Complainant Pamela Parker).

For the following reasons, the MJOP is **denied**.

Brief Factual Allegations and Procedural Background

This is a property dispute between neighbors regarding an easement. Plaintiffs’ Property is the dominant tenement of a 20-foot-wide easement that lies 12.5 feet on the Carapia Property and 7.5 feet on the Parker Property. (FAC at ¶ 8.) They allege several encroachments on this easement since their purchase of the property including overgrown vegetation, inoperable vehicles, and a screened patio. (*Id.* at ¶ 10(a).) Plaintiffs also allege that Carapias have maintained a fence within the 12.5 foot portion of the easement on the Carapia Property. (*Id.* at ¶ 10(b).)

Defendant Parker filed a Cross-Complaint for (1) trespass, (2) negligence, (3) intentional infliction of emotional distress, (4) negligent infliction of emotional distress, and (5) civil conspiracy on April 12, 2022.

The Carapia Defendants filed a Cross-Complaint for (1) quiet title based on adverse possession, (2) trespass, (3) negligence, (4) intentional infliction of emotional distress, (5) negligent infliction of emotional distress, and (6) civil conspiracy on April 13, 2022.

Plaintiffs filed a verified first amended complaint for (1) quiet title, (2) declaratory relief, (3) easement